

claim(s); and 4) the opponent would have a right to recover fees had he prevailed. (*Reynolds Metals Co. v. Alperson* (1979) 25 Cal.3d 124, 128-129.) A nonsignatory sued as though a party to the contract can recover fees as a prevailing party, i.e., because the nonsignatory would have been liable for fees had he lost, he is entitled to fees if he prevails. (*Mepco Services, Inc. v. Saddleback Valley Unified School Dist.* (2010) 189 Cal.App.4th 1027, 1045-1048.)

Here, Plaintiff sued both Benworth and Navarro for breach of the terms of the Note. Plaintiff alleges Navarro "all times mentioned in this complaint was the CEO and sole shareholder of Benworth" and sued Navarro as if he were a party to the Note. (FAC ¶¶ 5, 64-77; 123.) Because Navarro would have been liable for fees had he lost on Plaintiff's claims, Navarro is entitled to fees since he prevailed.

The Court finds Benworth and Navarro are both entitled to reasonable attorney fees and costs.

Reasonableness of Fees: Reasonable attorney's fees authorized by contract shall be awarded to the prevailing party as "fixed by the court." (Civ. Code § 1717, subd. (a).) The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Generally, courts employ the lodestar method to determine if attorney's fees are reasonable, which involves multiplying the reasonable rate of services by the number of hours spent on the case. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.)

The Court finds the hourly rates sought by Defendants ranging from \$290 to \$370 reasonable. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 695-696 [a "reasonable" hourly rate is the prevailing rate for similar work in the community where the court is located]; *Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009 [the court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate]).

As for time spent, Defendants seek a total of 76 hours, inclusive of fees incurred and anticipated on this motion. The Court declines to apportion fees based on contract versus noncontract claims because counsel's services were related to an issue common to all causes of action, i.e., the res judicata defense. (*Amtower v. Photon Dynamics, Inc.* (2008) 158 Cal.App.4th 1582, 1604-1605 [allocation not required when the issues are "so interrelated that it would have been impossible to separate them into claims for which attorney fees are properly awarded and claims for which they are not].)

However, the Court finds the time spent defending a separate action, OCSC Case no. 2022-01296496 ("2022 case") is not recoverable. Defendants needed to have filed a timely motion for attorney fees in that action showing entitlement to Section 1717 fees as the prevailing party in that action. The time awarded is reduced by 23 hours.

		The Court also declines to award time spent on Defendants' ex parte application to deem the demurrer and motion to strike as timely (01/26/24 to 01/30/24). The application was based on attorney error and should not be borne by Plaintiff. The time awarded is further reduced by 7.1 hours. Costs: Defendants seek \$3,258.14 in costs incurred in this action and the 2022 case. For the reasons set forth above, the costs incurred in the 2022 are not recoverable. The costs otherwise appear reasonable. In sum, the Court GRANTS the motion and awards attorney fees in the amount of \$14,688.50 and \$1,826.34 in costs, for a total of \$16,514.84. Counsel for Defendants shall provide notice of this ruling.
14	Vicens vs. General Motors, LLC	Plaintiffs Francisco Vicens and Jennifer Vicens's ("Plaintiffs" together) Motion for Attorney Fees and Costs ("Motion") is GRANTED. Plaintiffs are the prevailing parties in this action after settling defendant General Motors, LLC ("Defendant"). (Barry Decl., Ex. 1.) Pursuant to Civ. Code §§ 1794(d) and (e) and 15 U.S.C.A. § 2310(d)(2), as the prevailing parties on a lemon law matter, Plaintiffs are entitled to recover reasonable attorney fees. (<i>Serrano v. Priest</i> (1977) 20 Cal. 3d 25, 49; <i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal. App. 4th 967, 998.) Plaintiffs' counsel requests \$55,483 in attorney fees. The court, having reviewed the billing entries provided by Plaintiffs' counsel finds the hourly billing rates are slightly high, but still within the reasonable range. In reviewing the hours billed the court finds some excessive or unnecessary billed time. Approximately 21.7 hours were excessive or not necessary including time billed related to a non-existent motion to tax costs. The court finds a total of \$12,619.50 in overbilling. The court finds the reasonable sum for attorney fees to be \$42,863.50. (<i>PCLM Group, Inc. vs. Drexler</i> (2000) 22 Cal.4th 1084, 1094-96.) The request for costs totaling \$2,906.62 is granted as Plaintiffs produced a signed memorandum of costs Defendant did not file the required motion to tax said costs. (Civ. Proc. Code § 1033.5(a)(4) and (14); CA ST CIVIL RULES Rule 3.1700(b)(1).) However, even if the court were to consider the opposition as appropriate to attack the costs, Defendant did not meet its burden of showing any of the costs were unnecessary or excessive. The total sum of attorney fees and costs awarded to Plaintiffs against Defendant is: \$42,863.50 + \$2,906.62 = \$45,770.12. Plaintiffs to give notice.

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